



**Order under Section 135
Residential Tenancies Act, 2006**

Citation: Cannon v Forestview Apartments, 585914 Ontario Inc, 2025 ONLTB 96795

Date: 2025-12-18

File Number: LTB-T-085117-24

In the matter of: 35, 50 Detta Rd
Balmertown ON P0V1C0

Between: Erin Cannon Tenant

And

Forestview Apartments, 585914 Ontario Inc Landlord

Erin Cannon (the 'Tenant') applied for an order determining that Forestview Apartments, 585914 Ontario Inc (the 'Landlord') collected or retained money illegally.

This application was heard by videoconference on June 5, 2025.

The Landlord's Agent, Denise Rogalinski, and the Tenant's Legal Representative, Charles Veale, attended the hearing.

Determinations:

1. As explained below, the Tenant proved the allegations contained in the application on a balance of probabilities. Therefore, the Landlord must pay the Tenant \$1,002.95, inclusive of the application filing fee.
2. The Tenant paid the Landlord a last month's rent deposit of \$900.00 when they moved into the unit on July 28, 2020.
3. The Tenant vacated the unit on August 21, 2024.

4. The Tenant emailed the Landlord on July 18, 2024 with a general request to assign the rental unit to another person, per subsection 95(2) of the *Residential Tenancies Act, 2006* (the 'Act'). The email chain between the parties was submitted as evidence.
5. The Landlord's Agent replied on July 19, 2024 stating there was no lease to assign, as the tenancy was month-to-month after the fixed-term period ended on January 31, 2021. The email further stated that the Tenant was required to give 60 days' notice in order to terminate the tenancy, with the earliest vacate date at that time being September 30, 2024.
6. The Tenant's response on July 19, 2024 disagreed with the Landlord's interpretation of the Act and stated that unless otherwise instructed, the Tenant would take the Landlord's previous message as a refusal to consent to a general assignment of the lease.
7. The Landlord's Agent's further communications and testimony at the hearing reiterated their interpretation that the Landlord would only consent to an assignment of one month after which the assignee would be required to sign a new lease for a new rent amount. A new lease would be required as a tenancy can only be assigned for its fixed-term period, that being only one month in this case.
8. On July 22, 2024, the Tenant emailed the Landlord a signed N9 form for termination of the tenancy by August 31, 2024 for refusing to consent to a lease assignment. The Tenant stated their right to only provide 30 days' minimum notice as opposed to 60 days due to the Landlord's refusal per subsection 95(4)(a) and section 96 of the Act. The Tenant also provided an N9 form with 60 days' notice for September 30, 2024, in the event the Landlord did not accept the earlier notice. The Tenant confirmed they would pay rent for August 2024 by August 1, 2024 and that they intended to vacate the unit for August 31, 2024.
9. The Tenant also made a subsequent attempt to assign the lease to a specific person and informed the Landlord of this via email on August 19, 2024. This attempt was also refused by the Landlord and communicated to the Tenant that same day.
10. The parties did not dispute that the Tenant paid the rent for August 2024 and vacated the unit on August 21, 2024.
11. Having considered the evidence and submissions before me, I am satisfied on the balance of probabilities that the Landlord did not use the Tenant's rent deposit to pay for the last rental period of the tenancy and did not return the deposit to the Tenant contrary to the Act. The Tenant was correct to interpret the Landlord's response to their general assignment request as a refusal. The assignment of a lease essentially puts another person in the shoes of the tenant, whereby they assume all the rights and responsibilities given to the tenant for the rental unit. There is no statutory requirement the lease must be for a fixed term. In this instance, an assignment of the Tenant's lease would have been for the

continuation of the month-to-month tenancy, not just for one month and a requirement that a new lease then be signed for a new rent amount.

12. The Tenant then gave the Landlord a signed N9 notice of termination with at least 30 days' notice, per subsection 95(4)(a) and section 96 of the Act after the Landlord's refusal. The Tenant subsequently vacated the rental unit pursuant to the lawful notice. As the tenancy was terminated in accordance with a valid N9 notice, the evidence with respect to the Tenant's second (60 days) notice and attempt to assign the unit to a specific person are not relevant.
13. Since the Tenant paid rent for August 2024, the rent deposit was therefore not applied to the last month of the tenancy and was not returned to the Tenant contrary to the Act.
14. The Tenant requested the return of their last month's rent deposit including any interest owed, as well as reimbursement for the 10 days rent paid by the Tenant from August 22nd, 2024 as they vacated the rental unit prior to the August 31, 2024 termination date.
15. Since the Tenant vacated the unit pursuant to their notice of termination provided in accordance with the Act, they are not entitled to reimbursement for the 10 days the unit was vacant prior to the termination date. Section 88 of the Act does not apply and rent for the entire month of August 2024 was appropriately paid.
16. With respect to the amount of interest owing on the last month's rent deposit, the Landlord's position was that only \$2.71 in interest was owing to the date the Tenant vacated the rental unit. However, as no supporting documentary evidence was submitted to substantiate the Landlord's claim, I am not satisfied on the balance of probabilities that the Tenant was paid the interest owing. Therefore, the Landlord must pay to the Tenant \$54.95 for interest owing up to July 31, 2024, as the deposit was to be applied for the final month of the tenancy beginning August 1, 2024.

It is ordered that:

1. The total amount the Landlord shall pay the Tenant is \$1,002.95. This amount represents:
 - \$954.95 for the last month's rent deposit and interest owing for the deposit.
 - \$48.00 for the cost of filing the application.
2. The Landlord shall pay the Tenant the full amount owing by December 29, 2025.
3. If the Landlord does not pay the Tenant the full amount owing by December 29, 2025, the Landlord will owe interest. This will be simple interest calculated from December 30, 2025 at 4.00% annually on the balance outstanding.

December 18, 2025

Date Issued

Fotoula Hatzantonis

Member, Landlord and Tenant Board

15 Grosvenor Street, Ground Floor Toronto
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If you have any questions about this order, call 416-645-8080 or toll free at 1-888-332-3234.